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Minding the Commitment Gap: Alliance Reassurance and the Image of the Imperial Presidency

M. Patrick Hulme  and Matthew C. Waxman

ABSTRACT

Recent work in the alliance politics literature has highlighted various strategies of reassurance. We argue that this extensive literature overlooks a critical element in American reassurance of its allies: perceptions of an American presidency willing and able to act unilaterally. Specifically, while allies seek for the American commitment to be automatic, each US defense pact contains a procedural clause conditioning the American commitment on its “constitutional processes,” which creates a “commitment gap.” Allies are highly sensitive to this disparity, pressuring the American executive branch to bridge the gap through means such as broad assertions of presidential power, demonstrative unilateral uses of force, and tripwire deployments that constitutionally facilitate unilateral action. The article illustrates the logic of the theory through case studies of American alliances with the North Atlantic Treaty Organization (NATO), South Korea, the Philippines, and Thailand. It concludes by considering implications for the efficacy of tripwire deployments and broader debates over American grand strategy.

If it were known or believed abroad that ... [the USSR] could obliterate London and Paris by atomic bombs and that we would not do anything until Congress ... had been assembled and had debated and adopted a declaration of war ... our alliances would crumble overnight.

—John Foster Dulles¹

Introduction

Issues of alliance reassurance have once again moved to the fore of policy discussions as Russian, North Korean, and Chinese aggression—combined with the dawn of a new nuclear era—have all provoked questions in

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¹John Foster Dulles, Secy of State, Memorandum, to Herman Phleger, Legal Adviser. 18 Apr. 1954. 2 p. TOP SECRET. Declassified 10 December 1981. Eisenhower Library, John Foster Dulles, Papers, 1952-59, White House Memoranda Series, Box 1, White House Correspondence, 1954 (3).

Eastern Europe and East Asia about the reliability of American defense commitments. Scholars have also been returning to questions regarding alliance credibility, including the efficacy of different “strategies of reassurance.”²

These developments in international politics and scholarship have coincided with important developments in American domestic politics. President Trump’s expressed skepticism toward alliances has shaken treaty partners’ faith in American commitments. Amid these concerns, bipartisan majorities in Congress have undertaken several measures since 2017 to express congressional support for US allies.³ For example, lawmakers took the unprecedented step in 2023 of legislatively barring a president from withdrawing from the North Atlantic Treaty Organization (NATO) without Congress’s approval.⁴ Simultaneously, calls to restrain presidential war powers have grown louder, building on widespread American concerns of a purportedly unconstrained American executive when it comes to military intervention.^{5,6} Recent events may seemingly suggest allies, like many Americans, would recoil at an unconstrained imperial presidency. Some of the strongest policy proponents of deep alliance relationships also advocate for tighter legal constraints on the president’s power to use military force.⁷

These two issues—alliance reassurance and checks on presidential war powers—are almost never considered together. Vast legal scholarship on war powers rarely addresses alliances, and when it does, it rarely considers the strategic implications of different allocations of these powers. Scholars of alliance politics, however, tend to hand-wave past constitutional questions, including how allies or other foreign audiences perceive internal US constitutional constraints.

²Brian Blankenship, “Promises under Pressure: Statements of Reassurance in US Alliances,” *International Studies Quarterly* 64, no. 4 (2020): 1017–30, <https://doi.org/10.1093/isq/sqaa071>; Brian Blankenship and Erik Lin-Greenberg, “Trivial Tripwires?: Military Capabilities and Alliance Reassurance,” *Security Studies* 31, no. 1 (2022): 92–117, <https://doi.org/10.1080/09636412.2022.2038662>; Do Young Lee, “Strategies of Extended Deterrence: How States Provide the Security Umbrella,” *Security Studies* 30, no. 5 (2021): 761–96, <https://doi.org/10.1080/09636412.2021.2010887>; Lauren Sukin and Alexander Lanoszka, “Credibility in Crises: How Patrons Reassure Their Allies,” *International Studies Quarterly* 68, no. 2 (2024): sqae062, <https://doi.org/10.1093/isq/sqae062>.

³Jeffrey A. Friedman, “The Myth of a Bipartisan Golden Age for U.S. Foreign Policy: The Truman-Eisenhower Consensus Remains,” *International Security* 49, no. 2 (2024): 116, https://doi.org/10.1162/isec_a_00497.

⁴Scott Anderson, “What Congress Has Done—and What It Still Needs to Do—to Protect NATO,” *Lawfare*, 22 March 2024, <https://www.lawfaremedia.org/article/what-congress-has-done-and-what-it-still-needs-to-do-to-protect-nato>.

⁵See, for example, Bob Bauer and Jack Goldsmith, *After Trump: Reconstructing the Presidency*, (Lawfare Institute, 2020); Stephen Pomper and Tess Bridgeman, “2022 Update: Good Governance Paper No. 15: War Powers Reform,” *Just Security*, 21 January 2022.

⁶The canonical treatment is Arthur M. Schlesinger, *The Imperial Presidency* (Boston: Houghton Mifflin, 1973).

⁷See, e.g., Michael Beckley, “The Myth of Entangling Alliances: Reassessing the Security Risks of U.S. Defense Pacts,” *International Security* 39, no. 4 (2015): 7–48; Elizabeth N. Saunders, “Imperial President at Home, Emperor Abroad,” *Foreign Affairs*, June 16, 2025; Oona A. Hathaway, “Trump’s Strikes on Iran Were Unlawful. Here’s Why That Matters,” *Opinion*, *The New York Times*, 23 June 2025.

Consistent with existing scholarship arguing that veto-players in democracies enhance the credibility of commitments, one might expect that a stronger role for Congress in authorizing the use of force would increase American alliance credibility.⁸ For example, constraints on the president's war-making powers might lead to greater policy continuity, lessen the risk of misadventures, and ensure broad domestic support for interventions. This work suggests that allies might welcome stricter constitutional or statutory limits on presidential use of force.

We argue, however, that the credibility of American alliance guarantees fundamentally depends on perceptions of a president ready and able to use military force unilaterally in fulfillment of them—contrary to the way that critics of an imperial presidency interpret the Constitution. In this sense, allies deeply rely on a president pushing the bounds of presidential power. In contrast to arguments found in the literature suggesting that domestic constraints enhance alliance credibility, our argument implies that American allies heavily depend on the American president to do something often regarded as *undemocratic*.

We introduce an original theory of congressional-executive relations in alliance formation and management. We argue that the president and lawmakers—regardless of their personal beliefs or foreign policy ideologies—face different institutional incentives in the formation and fulfillment of alliance obligations. Presidents have direct control over the military, but have great difficulty avoiding blame in use-of-force decisions. Lawmakers, in contrast, lack control over the armed forces but possess a notable capacity to avoid responsibility. These contrasting attributes yield contrasting behaviors: while presidents will seek to create “automatic” commitments for purposes of deterrence and alliance reassurance, lawmakers resist “pre-committing” to decisions about force. At the stage of alliance formation, this leads lawmakers to include procedural conditions—such as clauses on “constitutional processes”—in the texts of defense treaties, whereas at the stage of alliance implementation, lawmakers seek to avoid responsibility for authorizing war. Concerns over this lack of automaticity in the American commitment (that is, a US military response that will be both *certain* and *immediate*) unsettle allies. In short, an irreducible dilemma exists: allies seek commitment, but commitment is precisely what Congress has sought to avoid. We characterize this as a

⁸Matthew Digioseppe and Paul Poast, “Arms versus Democratic Allies,” *British Journal of Political Science* 48, no. 4 (2018): 981–1003, <https://doi.org/10.1017/S0007123416000247>; Brett Ashley Leeds et al., “Interests, Institutions, and the Reliability of International Commitments,” *American Journal of Political Science* 53, no. 2 (2009): 461–76; Michaela Mattes, “Democratic Reliability, Precommitment of Successor Governments, and the Choice of Alliance Commitment,” *International Organization* 66, no. 1 (2012): 153–72, <https://doi.org/10.1017/S0020818311000336>.

“commitment gap.” In turn, this pressures presidents to create an image of an imperial presidency ready to act unilaterally in allies’ defense. Whereas allies might welcome some curbs on presidential imperialism—the president’s power to withdraw from treaties, most obviously—we argue that when it comes to the most contentious constitutional power of all—the power to make war—the opposite is true: effective alliance reassurance requires allied perceptions of a presidency willing and able to use force unilaterally.

This article proceeds as follows. We first review the relevant legal framework for American alliance relationships and the existing literature on alliance credibility, with a particular focus on treaty conditions and the question of reassurance. We argue that the existing literature has not recognized key differences between *substantive* and *procedural* conditions in alliance treaties. We contend they have different origins and implications, and the latter create the “commitment gap” in the eyes of alliance counterparties. We further argue that allies are highly sensitive to this gap, specifically pressuring the executive branch to “bridge the gap” in ways that credibly convey an ability and willingness to act unilaterally—including broad assertions of presidential power, demonstrative unilateral uses of force, and tripwire deployments intended to relieve constitutional constraints on military intervention without congressional authorization.

We demonstrate the logic of the theory through case studies of American alliances in two periods: first, in the period of alliance formation in the late 1940s and 1950s, and second, in the late 1960s and 1970s when there were widespread calls—and then legislation—in the United States to limit the president’s unilateral war powers. We present novel case evidence that presidential administrations consistently—across virtually all American alliances—assured allies that they would come to their defense unilaterally. Additionally, we introduce new case evidence of allies’ and partners’ reactions to American domestic political and legal debates in the late 1960s and early 1970s over the president and Congress’s respective war powers, and to legislative efforts during that period purporting to revive constitutional checks. Case studies of South Korea, the Philippines, and Thailand show that the president’s perceived (in)ability to come to the aid of allies unilaterally was a key driver of alliance behavior in the late- and post-Vietnam War period.

We close by considering the implications of these findings for alliance management today, including how an alliance-skeptic president might affect our argument and findings. Our focus on the legal questions animating the war powers-alliance relationship also highlights a distinct mechanism through which “tripwire” deployments can serve a reassuring function, despite contemporary pessimism toward tripwires in the literature.

Concluding, we argue that a grand strategy based on reassuring democratic allies abroad requires loose democratic constraints on presidential war powers at home.

War Powers and Alliance Powers: The Legal Landscape

This article joins other recent work that bridges the intellectual divide between security studies and legal scholarship.⁹ The key constitutional question at play here is when the president can launch military interventions unilaterally, versus when formal congressional authorization is required. This is a highly contested legal question—the Supreme Court has never resolved it. The resulting ambiguity and uncertainty have direct implications for alliance reassurance.

The president is on the strongest legal ground when using military force pursuant to express, formal authorization from Congress. More heavily contested is when presidents may act pursuant only to their inherent constitutional powers—that is, unilaterally. There is little debate that a president may respond unilaterally to direct attacks on the United States or its forces without waiting for congressional approval. Uses of force absent such direct attacks, however, attract far more controversy and opposition from lawmakers and the general public. *De jure*, the actual extent of the president's powers to initiate armed conflict remains intensely debated, even nearly a quarter millennium after the Constitution's drafting. *De facto*, it is well recognized that presidents of both parties—especially since World War II (WWII)—have often made and exercised very broad assertions of unilateral war powers. Most (in)famously, President Truman entered the Korean War without the formal blessing from lawmakers. Precisely how far presidents are actually willing to stretch their unilateral powers is an open question, as is at what point Congress will push back. Presidents after Truman have, in practice, consistently sought formal authorization before undertaking major ground wars, although they have often used force well short of such conflicts without such approval.

The specific question of alliance war powers—that is, whether a president can act without express authorization from Congress in defense of an ally—suffers from particular ambiguity. Indeed, as explained below, perhaps the most prominent debate during ratification of American defense treaties in the 1940s and 50s was precisely the question of whether

⁹Scott D. Sagan and Allen S. Weiner, "The Rule of Law and the Role of Strategy in U.S. Nuclear Doctrine," *International Security* 45, no. 4 (2021): 126–66, https://doi.org/10.1162/isec_a_00407; Matthew C Waxman, "The Power to Threaten War," *The Yale Law Journal*, 2014, 66.

constitutionally the United States could legally commit to war via international treaty absent a specific vote by Congress.

All American defense treaties deliberately paper over this controversy by including an ambiguous provision stating that military defense commitments will only be carried out pursuant to each state's "constitutional processes." To assuage, on the one hand, Senators who objected to delegating their power to declare war, and on the other hand, allies who feared an empty commitment, treaty negotiators inserted this compromise language. As Secretary of State Dean Acheson recalled of trying to please these two constituencies during the NATO treaty negotiations, it "became a contest between our allies, seeking to impale the Senate on the specific, and the senators, attempting to wriggle free."¹⁰

This "constitutional processes" language left unresolved, however, what precisely those "constitutional processes" might be. Clearly, formal authorization from Congress would satisfy this requirement, but, as mentioned above, even many skeptics of unilateral presidential power acknowledge the president's constitutional power to defend US forces from a direct threat without formal authorization from Congress. A more contested legal position is that, even in the absence of authorization from Congress and in the absence of a direct and imminent threat to American troops, a president has the constitutional power to defend an ally under attack because the mutual defense commitment essentially makes such action tantamount to defending the United States.

Although congressional debates over this issue died down after ratification of post-WWII American defense pacts, war powers debates during the Vietnam War re-inflamed disputes over the president's legal power to use force in defense of allies (without further authorization from Congress). This eventually led to the Senate's adoption of the non-binding 1969 National Commitments Resolution and, more famously and over President Nixon's veto, Congress's passage of the 1973 War Powers Resolution (WPR). The issue of alliances was one of the most contentious points in the hearings over these resolutions; the final language of the WPR expresses the view that defense treaties do not themselves provide advance congressional approval for defending allies militarily, and President Nixon warned, in unsuccessfully vetoing the law, that it would undermine the credibility of American commitments.¹¹ Notwithstanding contrary language in the WPR, presidents have continued to assert an inherent constitutional power

¹⁰Dean Acheson, *Present at the Creation: My Years in the State Department*. (W.W. Norton, 1969), 280.

¹¹John H. Sullivan, *The War Powers Resolution: A Special Study of the Committee on Foreign Affairs* (U.S. Government Printing Office, 1982).

to enforce American defense commitments on several occasions over the past five decades.¹²

The important takeaway here is that there is significant legal uncertainty as to whether a president may unilaterally defend an ally with military force. The effects of ambiguity and uncertainty, of course, are topics central to strategic studies, yet scholars of alliance politics have largely neglected the legal dimension. Instead, they have tended to assume one of two extremes: more commonly, that formal congressional approval is in practice irrelevant, or, more rarely, that Congress unquestionably would have to approve the use of force in defense of an ally. Neither of these extreme assumptions reflects legal and political reality: it is legally ambiguous whether a president could come to the defense of an ally absent approval from Congress, and while the president would de facto have the option of acting unilaterally, they would be undertaking substantial political (and some legal) risk by doing so.¹³ This ambiguity over what a president legally could and actually would do creates strategic problems that, we show, set the stage for key questions in American alliance management.

Alliances and Credibility

Political scientists and other scholars have analyzed factors affecting the credibility of commitments for decades. Most relevant to the topic at hand is work arguing that the primary function of writing alliances down is to tie a state's hands and create costs to not responding to an attack on an ally, and related work focusing on conditions in alliances.^{14,15} We argue, however, that the “constitutional processes” provisions found in American defense treaties are materially different from the substantive alliance conditions focused on in existing literature. We also argue that these procedural provisions in treaty texts create a “commitment gap” that allies pressure presidents to bridge.

¹²M. Patrick Hulme and Matthew C. Waxman, “War Powers Reform, U.S. Alliances, and the Commitment Gap,” *Lawfare*, 5 July 2023.

¹³M. Patrick Hulme, “War and Responsibility,” *American Political Science Review* 120, no. 1 (2026): 267–90. <https://doi.org/10.1017/S0003055425000206>.

¹⁴James D. Fearon, “Signaling Foreign Policy Interests: Tying Hands versus Sinking Costs,” *Journal of Conflict Resolution* 41, no. 1 (1997): 68–90, <https://doi.org/10.1177/0022002797041001004>; James D. Morrow, “Alliances: Why Write Them Down?,” *Annual Review of Political Science* 3, no. 1 (2000): 63–83, <https://doi.org/10.1146/annurev.polisci.3.1.63>.

¹⁵Daina Chiba et al., “Careful Commitments: Democratic States and Alliance Design,” *The Journal of Politics* 77, no. 4 (2015): 968–82, <https://doi.org/10.1086/682074>.

Treaty Design and Alliance Conditions

Although countries create alliances to deter aggression—and to win a conflict should war occur—states also seek to avoid over-commitment. Scholars have long recognized downsides to firm commitments to alliance partners, including risks of entrapment and free-riding.¹⁶ Snyder highlights the “alliance security dilemma” and argues that states work to alleviate concerns of abandonment and entrapment.¹⁷ One way to address this problem is the use of conditions in the treaty. Because perceived noncompliance with international agreements can be costly from a reputational perspective, states often include explicit conditions in their agreements or otherwise agree to relationships short of true defense pacts to mitigate the worst entrapment risks.^{18,19}

For example, Chiba et al. write that “in order to avoid violation or entrapment,” when crafting treaties, “leaders of democratic states may sometimes limit the depth and obligations of their alliances by making their commitments flexible and/or limited.” They may “forgo the greater deterrence offered by a firmer or broader commitment in order to avoid the potential costs associated with violating a commitment” and thus might choose consultation obligations over defense obligations or to condition defense obligations.²⁰ Fjelstul and Reiter highlight that conditions might limit defense obligations to cases when an ally is under attack (rather than attacks first) or to conflict with a specific adversary.²¹

Existing international security literature does not provide sufficient explanations and largely overlooks the “constitutional processes” provisos in American defense treaties. For example, even the gold-standard, comprehensive Alliance Treaty Obligations and Provisions (ATOP) dataset, which codes treaties for many kinds of alliance conditions—those related to specific adversaries, locations, ongoing conflict, and so on—does not code for the kind of domestic legal conditions implied by the “constitutional processes” term found in American defense treaties. Moreover, whereas recent work has argued that treaty drafting alone cannot solve some problems, we go one step further: we suggest that the treaty design in itself—specifically the “constitutional processes” terms—creates a severe

¹⁶Victor Cha, “Powerplay: Origins of the U.S. Alliance System in Asia,” *International Security* 34, no. 3 (2010): 158–96; Brian D. Blankenship, *The Burden-Sharing Dilemma* (Cornell University Press, 2023).

¹⁷Glenn H. Snyder, *Alliance Politics* (Cornell University Press, 1997).

¹⁸Douglas Gibling, “The Costs of Reneging: Reputation and Alliance Formation,” *Journal of Conflict Resolution* 52, no. 3 (2008): 426–54.

¹⁹Chiba et al., “Careful Commitments.”

²⁰*Ibid.*

²¹Joshua C. Fjelstul and Dan Reiter, “Explaining Incompleteness and Conditionality in Alliance Agreements,” *International Interactions* 45, no. 6 (2019): 976–1002, <https://doi.org/10.1080/03050629.2019.1647838>.

commitment problem for US alliances that successive presidential administrations have had to resolve.²²

“Constitutional Processes”: Procedural Versus Substantive Conditions

The alliance conditions focused on by other scholars in the existing international security literature are *substantive* conditions. “Constitutional processes” provisions, in contrast, are *procedural* conditions. This distinction is more than just splitting hairs: these procedural conditions have different origins and implications. Their insertion is not due to the rational design of “striv[ing] to balance a desire to deter aggressors with avoiding getting dragged into unwanted wars and paying audience costs of noncompliance,” as typically assumed of treaty provisions in the literature.²³ While the unitary actor model explanations given by others are compelling when applied to the substantive conditions on which they focus, “constitutional processes” conditions, by contrast, are the direct outcome of inter-branch, congressional-executive politics in the United States. Detailed accounts of the drafting of the North Atlantic Treaty, for instance, show that lawmakers—and not executive branch officers—forced these procedural provisions into the treaty text.²⁴ Indeed, as explained further in the following section, the executive branch and US allies did not want these conditions, but the Senate compelled them to accept this compromise language as a cost of ratification.

Moreover, we argue that these procedural conditions then have special strategic implications. While the substantive conditions normally found in alliance agreements limit the scope of the agreement but preserve the credibility of the core intent of the commitment (“We commit to X but not Y”), procedural conditions risk undermining the agreement as a whole (“We commit to X, if our Congress agrees to following through with our pledge at the time”). In other words, “constitutional processes” provisions risk undercutting the American commitment in its entirety—a grave challenge for reassurance efforts.

Hence, these procedural conditions create a gap between the level of commitment desired by allies and that which is actually provided by the treaty text, as depicted in the plot in [Figure 1](#). In treaty negotiations over the North Atlantic Treaty, European states sought to base the new agreement on the recent Brussels Pact, which lacked any such procedural condition and implied more automaticity.²⁵ At the same time, a small but vocal group of alliance skeptics in the Senate sought to condition the body’s

²²Blankenship, “Promises,” 1017–30.

²³Fjelstul and Reiter, “Explaining Incompleteness,” 980.

²⁴Michael J. Glennon, *Constitutional Diplomacy* (Princeton University Press, 1990); Timothy A. Sayle, *Enduring Alliance: A History of NATO and the Postwar Global Order* (Cornell University Press, 2019).

²⁵Lawrence S. Kaplan, *The United States and NATO: The Formative Years* (University Press of Kentucky, 1984).

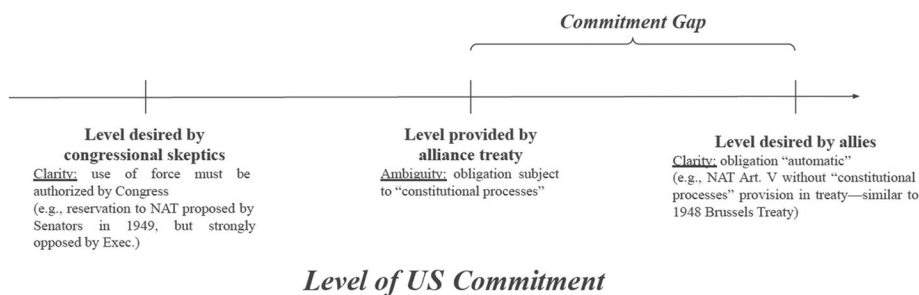


Figure 1. The “commitment gap.”

consent to the treaty on a proposed reservation clarifying that any use of force in furtherance of the treaty by the United States would have to be formally authorized by a congressional vote.²⁶ The executive branch strongly opposed this proposal, arguing that such a reservation would “not only raise doubts as to our determination in the minds of those who might be considering aggression, but would certainly raise the gravest doubts in the minds of our partners in the pact.”²⁷ The proposed treaty reservation was overwhelmingly defeated, and in the end, the executive branch and a large majority in the Senate agreed on the intentionally ambiguous “constitutional processes” language found in American defense pacts today. The difference between the commitment actually provided by the treaty (with the ambiguous “constitutional processes” language) and the automatic commitment demanded by allies is the “commitment gap” we highlight.

Automaticity: Why Allies Want an Imperial Presidency

Alliance politics literature widely recognizes that allies—especially those facing acute, immediate security threats—want the American commitment to be “automatic.” We suggest that this then has rather straightforward significance for how allies view domestic debates in the United States over constitutional powers and inter-branch checks: they desire loose constitutional restraints on the president’s power to make war.

There are plausible reasons allies may care little about the American constitutional allocation of war powers, or perhaps even prefer a more restrained American executive. First, a common response to claims that domestic politics matter to international credibility is the possibility that foreign actors simply lack information on politics (or legal debates) within the United States—and even if they have such information, it is unclear whether they actually pay it close attention.

²⁶Glennon, *Constitutional Diplomacy*, 213.

²⁷*Ibid.*, 214.

A second possibility is that US allies actually prefer legal restraints on the president. As highlighted in the introduction, there is much existing literature arguing that institutional constraints increase the credibility of alliance commitments made by democracies, specifically highlighting the role of veto players.^{28,29} While the focus of such work has been primarily on the question of treaty termination, the extension of the logic could plausibly extend to the question of making war. For instance, if presidents are inclined to undertake ill-conceived foreign interventions that drain American power and resolve, allies might desire a legislative veto player to restrain American misadventures. Henry and others have also shown that allies sometimes prefer that the United States not stand firm in other conflicts out of a fear that they themselves could get dragged into a war they have little interest in, or that the United States might otherwise get bogged down defending another ally.³⁰

Lastly, allies might actually want a congressional-approval requirement for a military response because it could lead to stronger action from the United States. While presidents can and do utilize military force unilaterally, Congress almost always authorizes the largest uses of force (i.e., full-scale wars).³¹ A US ally may therefore desire a requirement that Congress formally authorize the use of force in its defense to give the president political cover to see an intervention through.

In sum, there are several plausible reasons allies might either not care about the extent of the president's unilateral war powers or may even prefer formal authorization from Congress before a president intervenes. As we will show in the following sections, however, allies have long been highly attuned to constitutional war powers debates in the United States, and they care deeply that lawmakers cannot legally preclude the president from taking action without their formal approval. The overriding reason allies strongly prefer a presidency legally unconstrained by Congress is that they want reassurance that an American response will be automatic. More specifically, they want the United States to reassure a US response will occur (*certainty*), and it will happen quickly (*immediacy*).

Certainty

First and foremost, effective alliance reassurance requires protégés' belief that a response by the patron is near-certain. British Defense Minister Denis Healey famously reckoned in the context of Cold War Europe that

²⁸Digiuseppe and Poast, "Arms"; Leeds et al., "Interests."

²⁹Mattes, "Democratic Reliability."

³⁰Iain D Henry, *Reliability and Alliance Interdependence* (Cornell, 2022).

³¹Hulme, "War and Responsibility."

it took “five percent credibility of American retaliation to deter the Russians, but ninety-five percent credibility to reassure the Europeans.”³² Allies intuitively realize that a US response is more likely when strict legal constraint does not bind a president than when he or she is legally restrained from unilateral intervention. In other words, they see more *certainty* in an executive willing and able to act unilaterally than one risking veto from, or simple inaction by, the legislature.³³ Notably, the addition of another veto player would only serve to make an American response less likely: even in a case where Congress strongly supported an alliance, but the president did not, the addition of Congress as a veto player would not increase the probability of American intervention.

There are, moreover, institutional reasons why allies view the executive as more reliable than Congress. First, they worry about Congress’s reputation for gridlock and inaction. Even if members of Congress wanted to defend an ally just as much as a president did, collective action problems in a group of 535 could prevent a response, especially when political polarization has increased dramatically since the end of the Cold War.³⁴

Second, and more deeply, presidents are far more incentivized to take responsibility and respond to an attack on an ally because they have direct control of the means to intervene, and, additionally, the cost of inaction more squarely exposes the president than individual lawmakers. For all of the advantages presidents have in foreign policy vis-à-vis Congress, avoiding blame is not one of them.³⁵ Presidents, by virtue of their office, cannot escape the burden of use-of-force decisions. Lawmakers, in contrast, face precisely the opposite problem in foreign policy: difficulty in claiming credit but an ability to avoid blame.³⁶ They have no direct control of military action, and “they” are actually 535. They can, and will, “pass the buck” to each other, to past Congresses, to the executive branch, and to others. What this means, in short, is that the audience cost created by a treaty commitment more personally exposes presidents than individual lawmakers. The executive, thus, is far more incentivized to act at the

³²Denis Healey, *The Time of My Life* (W.W. Norton, 1990).

³³We focus on the contents of the treaty and treaty implementation, not on the particular process utilized in treaty formation. Other work suggests obtaining congressional approval at the treaty formation stage increases the perceived credibility of the agreement. Lisa L. Martin, “The President and International Commitments: Treaties as Signaling Devices,” *Presidential Studies Quarterly* 35, no. 3 (2005): 440–65.

³⁴Rachel Myrick, “Do External Threats Unite or Divide? Security Crises, Rivalries, and Polarization in American Foreign Policy,” *International Organization* 75, no. 4 (2021): 921–58.

³⁵Brandice Canes-Wrone et al., “Toward a Broader Understanding of Presidential Power: A Reevaluation of the Two Presidencies Thesis,” *The Journal of Politics* 70, no. 1 (2008): 1–16, <https://doi.org/10.1017/S0022381607080061>.

³⁶Kenneth A. Schultz, “Tying Hands and Washing Hands: The U.S. Congress and Multilateral Humanitarian Intervention,” in *Locating the Proper Authorities: The Interaction of Domestic and International Institutions*, ed. Daniel W. Drezner (University of Michigan Press, 2003).

moment of truth than lawmakers are, due to the broad diffusion of responsibility and strong avoidance of it found in the legislature.

Allies thus see the president as more predisposed to fulfill an obligation than lawmakers. Allies might see congressional authorization as a nice-to-have, but at the end of the day, they want to know that presidents are willing and able to come to their aid unilaterally.

Immediacy

In addition to seeking certainty, allies oppose requiring a congressional vote before an American military response because that process takes time. Making swift decisions is a decisive advantage of the executive branch—what Alexander Hamilton called in *Federalist* 70 “energy in the executive” allowing for “decision, activity ... and dispatch.”³⁷ Congress, by contrast, was designed to be slow. Allies know that whereas the executive branch can prepare to respond militarily anywhere in the world within hours (or in some cases minutes), such a response from the cumbersome legislature would take at least days, and maybe weeks or more.

Allies have consistently shown concern about this immediacy problem. Blankenship and Lin-Greenberg, for example, recently highlighted the importance for alliance reassurance of “not only having capabilities, but demonstrating the ability to use them *quickly*.”³⁸ Waiting for congressional action could expose frontline states to a risk of being overrun prior to an authorized response. There is the further possibility that Congress might be less willing to approve the use of force to retake territory lost than to defend an unoccupied ally at the start.

Consequently, because allies want to know that the United States will show up (certainty) and will show up quickly (immediacy), they prefer that the executive branch be willing to do so unilaterally. To be sure, generally a best-case scenario from an ally’s perspective would be widespread domestic American support for the intervention—to include possible authorization from Congress. However, given the choice between an imperial presidency willing to act unilaterally and an American commitment that requires an affirmative vote from Congress, allies will choose the former.

Bridging the Commitment Gap

Because allies strongly desire that a US response be as “automatic” as possible, the “constitutional processes” provisions found in American

³⁷Alexander Hamilton, *The Federalist* No. 70, in *The Federalist Papers*, ed. Clinton Rossiter (New York: Signet Classic, 1961), 423–24.

³⁸Blankenship and Lin-Greenberg, “Trivial Tripwires?,” 94.

defense treaties create a mismatch between the level of commitment required to satisfy allies, and that actually provided by the agreement—a “commitment gap.” It is well recognized that allies that are not sufficiently reassured will seek to achieve security through other means, including conventional military arming, the acquisition of nuclear weapons, or realignment. Blankenship argues that these outside options available to American protégés are quite consequential, as they may lessen allies’ incentives to support American foreign policy initiatives, join in military conflict, host American bases, or accede to favorable economic agreements. Moreover, these allies will likewise have less incentive to deny adversaries such benefits.³⁹ American leaders will thus seek to reassure US allies to head off these consequences.

Common reassurance methods used by the United States include the stationing of troops abroad, public statements, personal visits, summit diplomacy, and economic sanctions.⁴⁰ High-level diplomatic visits, such as by the Secretary of State, help signal US interests and priorities.⁴¹ Leader-specific signals, such as personal visits and statements, create “personal audience and reputational costs for leaders.”⁴² Troop deployments are another tool, and can range from small tripwire forces to large contingents made to substantially alter the local balance of power, or even nuclear weapons deployments.⁴³

Such measures mean little, however, if, when push comes to shove, legal constraints disable the president from using American forces in defense of the ally. Hence, a foundational question for all US allies relying on the promise of US intervention is whether, at the moment of truth, the president can and will act. Allies’ perceptions of a legally-unconstrained presidency are thus a critical element of alliance reassurance.

There are several methods presidents use to convince allies abroad they are able and willing to use the American armed forces even absent formal approval from Congress. First, and most obviously, the executive branch might state its intention to do so. This could involve specific assurances in private or in public. More generally, this might involve very broad, public claims to presidential war powers to create an image of a presidency not hamstrung by Congress. Assertions such as these can credibly convey

³⁹Blankenship, “Promises.”

⁴⁰Sukin and Lanoszka, “Credibility.”

⁴¹James H. Lebovic and Elizabeth N. Saunders, “The Diplomatic Core: The Determinants of High-Level US Diplomatic Visits, 1946-2010,” *International Studies Quarterly* 60, no. 1 (2016): 107–23.

⁴²Roseanne W. McManus, “Making It Personal: The Role of Leader-Specific Signals in Extended Deterrence,” *The Journal of Politics* 80, no. 3 (2018): 982–995, <https://doi.org/10.1086/697462>.

⁴³Blankenship and Lin-Greenberg, “Trivial Tripwires,” 92–117. Dan Reiter and Paul Poast, “The Truth About Tripwires: Why Small Force Deployments Do Not Deter Aggression,” *Texas National Security Review*, 2 June 2021; Lee, “Strategies,” 761–96.

a willingness to do so because statements that face costs are not cheap talk.⁴⁴ Promising to act unilaterally, for example, creates potential unfilled reputational costs (i.e., a “tying hands” mechanism). Similarly, given that domestic American audiences largely bemoan presidential imperialism and that presidents risk domestic disapproval for stating a willingness to act imperially, such a stance could be a form of costly signaling (a “sinking costs” mechanism).

Second, demonstrative unilateral uses of force help prove the White House’s willingness to act unilaterally. Lastly, the use of troop deployments might facilitate the constitutional justification of unilateral action. As previously noted, whereas there is significant legal controversy over whether a president can unilaterally use American military force in defense of an ally, there is little doubt that they can use force if *American* armed forces are under attack. Thus, deployments of American troops—even in modest numbers—can significantly bolster the legal case for unilateral intervention. This legal consideration gives a logic to tripwire deployments distinct from existing literature: an attack on US forces would not simply increase the cost of backing down in the crisis, but would actually lower the cost of following through with the use of force.^{45,46}

Hence, the executive branch can use each of these tools (statements, demonstrations, and deployments) to reassure allies of a willingness to act even absent formal authorization from Congress.

Scope Conditions

Here, we highlight two scope conditions for our argument. First, we focus on formal treaty allies of the United States. In practice, this means alliances that have secured Senate advice and consent, including, for example, all NATO member states, Japan, South Korea, the Philippines, and Australia. Our focus on formal alliances is consistent with much of the existing literature on alliances and reassurance.

Second—and, again, in line with much of the literature examining different “strategies of reassurance”—we primarily focus on situations in which US protégés fear abandonment more than entrapment or unnecessary escalation caused by Washington. It is possible to imagine a situation in which a relatively secure ally of the United States (say, Canada) actually

⁴⁴Fearon, “Signaling,” 68–90.

⁴⁵Paul Musgrave and Steven Ward, “The Tripwire Effect: Experimental Evidence Regarding U.S. Public Opinion,” *Foreign Policy Analysis* 19, no. 4 (2023): orad017, <https://doi.org/10.1093/fpa/orad017>; Thomas C. Schelling, *Arms and Influence*. (Yale University Press, 1966).

⁴⁶Hulme, “War and Responsibility”; Roseanne W. McManus, *Statements of Resolve: Achieving Coercive Credibility in International Conflict* (Cambridge University Press, 2017), <https://doi.org/10.1017/9781316756263>.

has more to fear from an overly aggressive president who brings on an unwanted war than from abandonment by the United States in the face of attack from an adversary. Scholars have recently pointed out that many of the canonical tools of reassurance (like troop deployments and statements) can worry allies more than reassure them.⁴⁷ It is therefore important to highlight this as a scope condition for any strategy of reassurance. Nevertheless, it is more often the case that a protégé fears attack from an adversary more than entrapment from its patron—indeed, were this not the case, it would make little sense for the protégé to be in the alliance relationship in the first place. Moreover, even while there might be specific situations in which allies bemoan presidential unilateralism, when it comes to the question of their own defense, allies consistently demand assurances for instant—which usually means unilateral—action. Indeed, even geographically secure allies such as Canada have at times expressed grave concern about the inability of the American president to act instantly without seeking congressional approval, and pressured the executive branch into finding ways to do so.⁴⁸

Theoretical Expectations

The foregoing discussion suggests the following observable implications: first, allies care deeply about these “constitutional processes” provisions, the perceived constitutional war powers of the president, and whether a president can come to their aid unilaterally. We would expect to see this both at the stage of alliance formation (when parties are crafting the actual terms of agreement, and this specific question would naturally arise), as well as during the actual term of the alliance so long as the protégé perceived significant threats to its security. These allies will seek to have this “constitutional processes” language omitted from the treaty, to have Congress authorize the use of force in advance, or to have the president take actions that credibly demonstrate the ability to respond unilaterally in the event of an attack. Should allies not feel reassured by the foregoing measures of the president’s ability to come to their aid, we would also expect them to attempt to make up for this lack of commitment through measures such as threatening or actually undertaking armament (including nuclear proliferation), demanding military aid from the United States, or realigning their foreign policy.

⁴⁷Sukin and Lanoszka, “Credibility.”

⁴⁸In one conversation in 1951, the Canadian Ambassador made clear that “it would be most regrettable” if some “constitutional or legislative obstacle” might prevent the U.S. from acting instantly. *FRUS*, 1951, National Security Affairs; Foreign Economic Policy, Volume I, Doc. 302.

Second, we would expect to see that presidents and close advisers are consciously aware of this gap and perceive strong pressure from allies to address it. More specifically, we would expect to see the executive branch telling allies that the president would respond unilaterally in the event of attack regardless of process conditions found in the treaty, deployments of US forces in ways that bolster legal justifications to act even absent congressional approval, or perhaps even demonstrative uses of military force to credibly convey the president's willingness to act unilaterally. In other words, presidents will feel pressure to project an image of an imperial president specifically to reassure allies.

Hence, the perceived willingness and ability of the president to act unilaterally tightly links with the credibility of American alliance commitments. This argument, however, is not without detractors. Indeed, the conventional wisdom is that such a strong connection does not exist. For example, despite the warnings Nixon and Kissinger made to Congress in the early 1970s that legal constraints on the president would unnerve allies, Congress widely dismissed such concerns. One of the strongest proponents of war powers reform, Senator Thomas Eagleton, repeatedly argued that such legal strictures would not have any "negative effect" on US commitments because "it must be well known to the leaders of [allies] that before American troops become involved there has to be authorization to become engaged in war."⁴⁹ Similarly, Senator Jacob Javits, the primary sponsor of the WPR, argued that constraining the president would not undermine US alliances because "every nation in the world knows ... that the President cannot commit this nation to a determined war struggle without the concurrence of the Congress."⁵⁰

More recently, several (often bipartisan) proposals to reform the War Powers Resolution, which has proven porous and unenforceable, would effectively prohibit action to defend allies absent formal approval from Congress.⁵¹ There has seemingly been minimal recognition that such legislation might severely unsettle allies—indeed, many of the legislators supporting these proposals, such as Senators Tim Kaine and Chris Murphy, are noted internationalists who have criticized President Trump's dismissive treatment of alliance partners. Similarly, several leading scholars of international relations and international law otherwise noted for their support of American alliances have called for curtailing the president's powers to

⁴⁹War Powers: Hearings, Ninety-third Congress, First Session. United States: U.S. Government Printing Office, 1973.

⁵⁰Jacob Javits, *Congressional Record*, 5 November 1973.

⁵¹*War Powers Amendments of 2021*, H.J. Res. 29, 117th Cong., 1st sess., introduced 8 March 2021, <https://www.congress.gov/bill/117th-congress/house-joint-resolution/29/text>; *National Security Powers Act of 2021*, S. 2391, 117th Cong., 1st sess., introduced 20 July 2021, <https://www.congress.gov/bill/117th-congress/senate-bill/2391>.

Table 1. Observable implications of competing theories.

	<i>Commitment gap: close relationship between alliance reassurance and perceived ability of president to act unilaterally</i>	<i>No gap: perceived strength of alliance commitment unrelated to perceptions of president's ability to act unilaterally</i>
US Allies	Attentive to "constitutional processes" language in treaty; strong aversion to legal requirement of congressional approval to intervene; skepticism toward reliability of American commitment if president perceived as legally constrained; desire for legal mechanisms to support presidential unilateralism.	Requirement of congressional authorization prior to US response not viewed as problematic; largely unaware of, or give little care toward, US domestic war powers questions; credibility of US commitment not seen as closely related to president's legal authority.
US Presidential Admins.	Sensitive to perceived lack of legal ability to act unilaterally; attempt to convince allies president willing to respond unilaterally (e.g., demonstrative uses of force to prove president unconstrained; broad assertions of presidential power; tripwire deployments that bolster legal justifications for unilateral action).	A minimal amount of pressure felt to show legal capacity to act or willingness to do so without congressional authorization.

make war.⁵² Such prescriptions seemingly assume that the strength of US alliance commitments is unrelated to the president's perceived ability to initiate armed conflict unilaterally. Table 1 shows observable implications consistent with this lack of relationship.

Our theory implies that increases in congressional efforts to constrain the president will lead to greater presidential effort to reassure allies or, failing that, efforts by allies to reduce dependence on the United States. The conventional wisdom, demonstrated by the quotes from policymakers above, suggests this will not occur: congressional efforts to constrain the president will have little impact on how reassured allies feel and, hence, not lead to these developments.

Research Design and Case Evidence

To test our theory, we use archival evidence to investigate allies' perceptions of war powers issues in the United States. Following Henry, Blankenship, and many others, we examine US alliance cases from the Cold War.⁵³ This not only allows us to directly compare our own theory to cases already familiar to other scholars, but it provides several other benefits. First, as a practical matter, we have better access to private or

⁵²See, e.g., Beckley, "Myth"; Saunders, "Imperial President"; Hathaway, "Trump's Strikes."

⁵³Blankenship, *Burden-Sharing*; Henry, *Reliability*.

declassified diplomatic correspondence in that era than in the post-Cold War period. Second, as a theoretical matter, these cases should be more difficult tests for our theory, because the further back in time we go, generally the less information about constitutional debates occurring in Washington traveled to foreign capitals; if we find that our theory operated even in the early Cold War, then it should all the more so operate today.

Within the Cold War era, we focus on two specific time periods: first, the late-1940s to mid-1950s period during negotiation and ratification of the treaties; and second, the late 1960s and early 1970s period when war powers debates raged in the United States and with the enactment of the 1973 War Powers Resolution.

In the first period, we focus mainly on the formation of the North Atlantic Treaty, as this was both the most high profile of the new American defense commitments and set the template for subsequent treaties.⁵⁴ Because recent work has highlighted the problem of assuming generalizations based solely on European case studies, we then focus our case studies of the War Powers Resolution era on states in East Asia.⁵⁵ Altogether, we show a consistent pattern across alliance partners throughout the world: allies want an unconstrained presidency when it comes to the power to make war. We conclude by considering the applicability of these findings from the Cold War to alliance politics today.

Treaty Formation (1940s–1950s)

If US allies associate American war powers with alliance credibility, we would expect to see such concerns apparent in the original treaty bargaining. It is also here that we should find clear evidence of a commitment gap between what allies feel necessary and for what US treaty commitments legally provide. We find evidence to support each of these propositions.

North Atlantic Treaty

The negotiating history of the North Atlantic Treaty in 1948–49 clearly shows the commitment gap. Acheson viewed as paramount the contest between allies' desire for automatic commitment and the Senate's demands to avoid such commitment: "I was like a circus performer riding two horses."⁵⁶ President Truman similarly noted the tension between reassuring allies and gaining Senate approval of the treaty, recalling in his memoirs

⁵⁴Raymond C. Kuo, *Following the Leader: International Order, Alliance Strategies, and Emulation* (Stanford University Press, 2021).

⁵⁵David C. Kang and Alex Yu-Ting Lin, "US Bias in the Study of Asian Security: Using Europe to Study Asia," *Journal of Global Security Studies* 4, no. 3 (2019): 393–401.

⁵⁶Acheson, *Present*, 277.

that the United States was unable to explicitly agree to “any automatic, unlimited engagements under our constitutional system ... but we had to give assurances sufficient enough to inspire the confidence and bolster the faith of the countries of Europe who felt themselves under constant and heavy Soviet pressure.”⁵⁷

Indeed, the 1949 Senate debate on the treaty’s ratification centered on the question of whether the United States would be committed to war absent a formal vote by Congress to authorize the use of force. Even some of NATO’s strongest supporters in the Senate expressed concern about the commitment gap. Acheson writes of the “dilemma” facing Senator Arthur Vandenberg: “he understood clearly that the more specifically the commitment was defined the more nearly the opposition might approach that one-third-plus-one of the senators present that could defeat it, while the more vaguely it was stated the less would it achieve his purpose”—that is, deterrence and reassurance.⁵⁸ Still, Vandenberg expressed discomfort with the possibility that the treaty might make “instant war action by the president automatic and inevitable if there is an armed attack on someone else.”⁵⁹

From the earliest moments of treaty negotiations with foreign counterparts, Congress’s constitutional power to declare war had posed a problem.⁶⁰ It was Congress’s opposition—mostly framed in constitutional terms—to an automatic commitment beyond its control that led to insertions in the treaty text providing that parties would carry out their mutual defense obligations “in accordance with their respective constitutional processes.”⁶¹ A Senate committee report on the treaty clearly exhibited the have-it-both-ways logic. It stated that the pact’s primary purpose was deterrence, but it also stated that the treaty did not “give the president the power to take any action, without specific congressional authorization.”^{62,63}

Prospective allies in Western Europe sought a strong, clear commitment from the United States and fought hard against this process language.⁶⁴ In a February 1949 conversation, for example, the Norwegian foreign minister argued: “They say the Pact provides for consultation and other action according to constitutional processes and meanwhile Denmark will have been overrun.”⁶⁵ Acheson told the Norwegians that although the

⁵⁷Harry S. Truman, *The Memoirs of Harry S. Truman. Vol. 2. Years of Trial and Hope, 1946–53* (Hodder & Stoughton, 1956), 245.

⁵⁸Acheson, *Present*, 280.

⁵⁹Kaplan, *United States*, 115.

⁶⁰FRUS, 1948, Western Europe, Volume III, Doc. 117.

⁶¹“The North Atlantic Treaty.” NATO. https://www.nato.int/cps/en/natohq/official_texts_17120.htm.

⁶²U.S. Congress, Senate, Committee on Foreign Relations, *Report on the North Atlantic Treaty*, S. Exec. Rept. 8, 81st Cong., 1st sess., 6 June 1949, 27.

⁶³*Ibid.*, 14.

⁶⁴Kaplan, *United States*; Sayle, *Enduring Alliance*.

⁶⁵FRUS, 1949, Western Europe, Volume IV, Doc. 55.

American response might not be “automatic” per se, there were “certain actions [the] executive might take” unilaterally to “certainly exercise” the American mutual defense commitment.⁶⁶

Acheson walked an extremely fine line between appeasing the Senate enough to secure ratification—the sine qua non of the treaty—and yet to keep allies reassured. European negotiators unsuccessfully pushed to leave out of the text any mention of constitutional requirements, which would have been consistent with the existing Brussels Treaty.⁶⁷ On the other side, some US senators unsuccessfully pushed for a treaty reservation that would have explicitly clarified that any US use of force in furtherance of the treaty would have to be formally authorized by a congressional vote.⁶⁸ Neither of those alternative formulas could achieve both strategic needs and requisite political support. With the “constitutional processes” language, Acheson garnered enough Senate support to win ratification but avoided conceding that *only* Congress could authorize the use of force. Indeed, the administration intentionally left many Europeans with the impression that it could act unilaterally. The British delegates, for example, reported home that “the United States would not be able to avoid being involved in the conflict whatever view the Senate took as to its technical right in regard to the declaration of war.”⁶⁹

A year later, the executive branch reassured NATO allies of that unilateral presidential power when Truman went to war in Korea without formal congressional approval. One author argues that Truman believed he “had to circumvent the constitutionally prescribed role of Congress in declaring war, in order to show the world that the United States could respond quickly to communist aggression.”⁷⁰ The move—which caused alarm among opponents of presidential unilateralism at home—seemingly had that reassuring effect among European allies: while a year earlier Norway had expressed specific worry that the “constitutional processes” provision of NATO would inhibit an effective American response, the Norwegian Ambassador now told Acheson that “the smaller nations of Europe were much heartened ... feeling that if the US is capable of meeting a situation in Korea so firmly, it will certainly not falter in its commitments in the NAT area.”⁷¹

⁶⁶Ibid, Document 64.

⁶⁷Kaplan, *United States*.

⁶⁸Glennon, *Constitutional Diplomacy*, 213.

⁶⁹Memorandum by the SIS for Foreign Affairs, 19 February 1949, “North Atlantic Pact,” C.P. (49)34, pp. 1-2, CAB 129132 8605.

⁷⁰James N. Giglio, “33. Harry S. Truman,” in 33. Harry S. Truman (New York University Press, 2016), <https://doi.org/10.18574/nyu/9781479835416.003.0036>.

⁷¹Dean Acheson, memorandum of conversation with Wilhelm Morgenthau, June 20, 1950, Acheson Papers, HSTL.

Such assertions of presidential power to carry out American treaty commitments continued in the Eisenhower administration. In 1954, Secretary of State Dulles publicly stated that the NATO obligations of the United States required the president to respond without waiting for action by Congress in the event an ally was under attack.⁷² Unilateral action by the president and alliance reassurance seemingly went hand-in-hand.

Pactomania

Each of the subsequent alliances forged by the United States over the next decade showed a similar pattern to NATO's. As other scholars have emphasized, each of these treaties specifically adopted the "constitutional processes" language found in the NATO treaty, and many senators at the time cited that provision in asserting that the treaty thus contained no "automatic" commitment.⁷³ Less well-known is that for nearly every alliance, allies expressed specific concern over whether the president would have the ability to come to their aid absent congressional approval, and that the White House consistently assured allies that it could (and would). To the best of our knowledge, [Table 2](#) shows never before systematically compiled assurances of unilateral action—in tension with the language approved by Senators.

That many of these private US assurances took place under the Eisenhower administration is especially telling because Eisenhower was generally more deferential to congressional war power prerogatives than other postwar presidents.⁷⁹ Thus, even the presidential administration that seemed least inclined to proclaim broad assertions of presidential power was, in fact, reassuring allies that congressional authorization was unnecessary to come to their defense. Consistent with our theory, the evidence strongly suggests that throughout this period of treaty formation, the executive branch viewed an image of an imperial presidency ready, willing, and able to use force unilaterally as a critical component of effective alliance reassurance.

War Powers Resolution (1960s–1970s)

In addition to the era of treaty formation in the late-1940s and 1950s, we also examine the period around the War Powers Resolution. If allies are concerned about the American president's ability to act unilaterally, we might expect to find evidence of their concerns during this time period.

⁷²War Power Legislation, 1973: Hearings, 93-1, 11–12 April 1973. United States: 1973.

⁷³Glennon, *Constitutional Diplomacy*.

⁷⁹Louis Fisher, *Presidential War Power*, 3rd ed., revised (University Press of Kansas, 2013).

Table 2. Guarantees of unilateral action to fulfill US alliance obligations.

Treaty	Evidence of ally concern about inability of president to act unilaterally	Reassurance from executive branch that president would act unilaterally	
NATO	Yes (see above)	Yes (see above)	
ANZUS	Yes. An Australian representative asked, "What was meant by the reference to constitutional processes?"	Yes. A US representative replied: "Only in the unlikely event that the US started a war would the phrase have relevance. It did not in fact therefore impose any serious limitation."	⁷⁴
US–ROK	Yes. The South Korean president asked, "May we count upon inclusion of a provision for immediate and automatic military support in case ROK should be attacked?"	Yes. The US representative assured: "The President would within his executive powers act instantly to aid a friendly nation with whom we had a security pact ... you may of course count upon our immediate and automatic military reaction," because "such an attack would not only be an attack upon the Republic of Korea but an attack upon ... U.S. forces."	⁷⁵
US–Phil.	Yes—sought several reassurances of this throughout 1950s.	Yes. Reassurances in 1954, 1958. In 1959, because of massive US troop presence in country: "it is no legal fiction to say that an attack on one is an attack on both."	⁷⁶
US–ROC	Yes—ROC Ambassador asked, "if the President could take measures under the Treaty ... without consulting Congress" and "if ... the President in his discretion could take immediate measures."	Yes. A US representative replied: "[T]his Treaty language would provide the President with constitutional authority, which he would not otherwise have, to act in the event of an armed attack."	⁷⁷
SEATO	Yes—A delegate of the Philippines insisted that "when we are attacked, that attack shall be repelled by all and instantly, because ... if we are to depend on constitutional processes, we may all be wiped out ... before action is taken."	Yes—A US representative assured: "In the event that the safety of the United States is imperiled, the President is empowered to act without regard to Congress."	⁷⁸

Note: NATO, North Atlantic Treaty Organization; ANZUS, Australia, New Zealand, United States Security Treaty; ROK, Republic of Korea; ROC, Republic of China; SEATO, Southeast Asia Treaty Organization.

⁷⁴FRUS, 1951, Asia and the Pacific, Volume VI, Part 1, Doc. 52.

⁷⁵FRUS, 1952–1954, Korea, Volume XV, Part 2, Doc. 713–15.

⁷⁶FRUS, 1952–1954, East Asia and the Pacific, Volume XII, Part 2 Doc. 375; FRUS, 1958–1960, South and Southeast Asia, Volume XV, Doc. 401; Telegram 1377 from Manila, October 12, 1959; Department of State, Central Files, 711.56396/10–1259.

⁷⁷FRUS, 1952–1954, China and Japan, Volume XIV, Part 1, Doc. 382.

⁷⁸FRUS, 1952–1954, East Asia and the Pacific, Volume XII, Part 1, Doc. 354.

Table 3. Summary of findings.

<i>Era</i>	<i>Treaty</i>	<i>US Allies</i>	<i>US Admin.</i>
Treaty Formation Era (late 1940s–1950s)	NATO	Strongly seek “automatic” commitment; view congressional role as undermining treaty.	Truman pushes back strongly against strict requirement of congressional approval, but concedes ambiguous “constitutional processes” language to secure ratification; defends Korea unilaterally in part to demonstrate this to foreign audiences. Eisenhower admin. publicly declares it will intervene without waiting for Congress.
	“Pactomania” (ANZUS, US–Philippines, US–ROK, US–ROC, SEATO)	Strongly seek “automatic” commitment; ask for reassurance president will act unilaterally.	Executive branch repeatedly utilizes creative legal arguments and tripwire deployments to reassure allies it will act unilaterally.
WPR Era (late 1960–late 1970s)	South Korea	Repeatedly asks for removal of “constitutional processes” language from the treaty; demands US forces be installed close to DMZ so that president will have constitutional authority to respond unilaterally.	Executive branch reassures ROK government president will respond unilaterally; points to US troop deployments as giving president unilateral power; consciously utilizes <i>Mayaguez</i> incident as demonstration of president not being “hamstrung” by WPR.
	Philippines	Repeatedly asks for more “automatic” commitment; worried about impact of WPR; specifically asks for US troop deployments as “tripwire” to justify unilateral action by president.	Executive branch attempts to reassure Manila that WPR would have little effect, and to compensate materially for perceptions otherwise.
	Thailand	Repeatedly asks removal of “constitutional processes” language from treaty; realigns after concluding that Congress legally constrains the president (extra barrier of Case-Church Amendment).	Executive branch attempts to point to moderate US military presence in Thailand and other executive actions.

Note: NATO, North Atlantic Treaty Organization; ANZUS, Australia, New Zealand, United States Security Treaty; ROK, Republic of Korea; ROC, Republic of China; SEATO, Southeast Asia Treaty Organization; DMZ, Demilitarized Zone; WPR, War Powers Resolution.

The US Congress enacted the final version of the WPR over a presidential veto in November of 1973; however, we examine roughly the period from 1967 through the end of the 1970s. Although Congress first introduced draft versions of the WPR in 1970, the first debates of the precursor to

the WPR—the Senate’s non-binding National Commitments Resolution (NCR)—occurred as far back as 1967. Moreover, it took several years after 1973 for actors to assess the WPR’s practical impact.

The name of the WPR’s predecessor was the National *Commitments* Resolution, chosen for a reason. In the time period, Congress widely believed that US commitments were a key driver of the imperial presidency.⁸⁰ Hearings about the NCR and WPR often involved both consideration of how international commitments were contributing to an aggrandized president and, conversely, how the resolutions would affect American alliances. For example, the Nixon administration often used risks to alliance credibility as an argument against a WPR. This was not just politics; internal documents from April 1972 show an administration concerned that the proposed bill would create “a serious erosion of credibility of the U.S. as a collective security partner in eyes of all allies, especially NATO.”⁸¹ Two months later the administration privately assessed that even a non-binding bill would call into question the “reliability of U.S. commitments to allies.”⁸² Nixon’s veto message of the WPR in the fall of 1973 similarly argued “the confidence of our allies in our ability to assist them could be diminished” by the resolution.⁸³

Two key debates surrounding the WPR’s text are especially important. First and foremost, for domestic and international actors alike, was how constraining the new act was *de facto*. While today the WPR is often considered a virtual dead letter, this was not the case at the time of its enactment.⁸⁴ The WPR’s text states that the president may only use force “pursuant to (1) a declaration of war, (2) specific statutory authorization, or (3) a national emergency created by attack upon the United States ... or its armed forces.”⁸⁵ Notably and intentionally omitted is any authority to act in furtherance of a treaty obligation, and there was great uncertainty over whether that specific provision was legally binding.⁸⁶ The WPR further declares that congressional authorization “shall not be inferred ... from any treaty.”⁸⁷ Although commentators today often aver that the WPR recognizes broad presidential authority to use force for 60 days absent

⁸⁰Hulme and Waxman, “War Powers Reform.”

⁸¹*FRUS*, 1969–1976, Volume II, Organization and Management of U.S. Foreign Policy, 1969–1972, Doc. 389.

⁸²*Ibid.*, Doc. 392.

⁸³Richard Nixon, Veto of the War Powers Resolution Online by Gerhard Peters and John T. Woolley, The American Presidency Project.

⁸⁴As explained below, and consistent with other scholarship, the primary reason presidents felt it necessary to “wriggle free” of the WPR was precisely for reasons of alliance reassurance. See, for example, Fibiger, “Remaking the Imperial Presidency.”

⁸⁵War Powers Resolution, Pub. L. No. 93–148, § 2(c), 87 Stat. 555, 555 (Nov. 7, 1973).

⁸⁶The WPR actively considered but ultimately rejected the inclusion of alliances as a fourth possible source of authority. Sullivan, *War Powers Resolution*.

⁸⁷War Powers Resolution, Pub. L. No. 93–148.

formal authorization from Congress, this was not the interpretation understood by most of the bill's supporters at the time.⁸⁸ The WPR added new uncertainty about the president's unilateral power to defend allies atop the ambiguous "constitutional processes" clause in alliance treaties.

If those were domestic US debates, what did allies make of them? We focus our analysis here on three cases of US allies in East Asia—South Korea, the Philippines, and Thailand—though we found very similar perceptions among other allies during the same time period, and the findings appear to generalize broadly. Much material, for example, shows that South Vietnam recognized that a constrained president posed an existential threat to its own security.⁸⁹ Likewise, when attempting to reassure Pakistan after the Soviet invasion of Afghanistan in 1979, the Carter Administration was unable to assuage fears in Islamabad that the War Powers Resolution undermined the credibility of any American defense commitment without explicit congressional authorization for the use of force.⁹⁰

South Korea

South Korea, like most other US allies, sought a firm, automatic commitment from the United States to respond in case of attack. From the moment of alliance formation in the early 1950s, Seoul was particularly adamant that the president be able to respond without waiting for congressional approval. In a March 1967 briefing paper for the visit of Prime Minister Il Kwon Chung, the Johnson administration noted that the South Koreans had again recently been floating proposals to amend the US–Republic of Korea (ROK) Mutual Defense Treaty to remove the reference to "constitutional processes."⁹¹ The briefing stated that "The Koreans believe that such an amendment would result in language compelling an instantaneous U.S. response."⁹² The American reply was to state that the commitment in the ROK–US alliance was "substantively the same" as NATO's and that "our commitment to Korea's security is demonstrated by the continuing presence of American troops there."⁹³

Less than a year later, after the *Pueblo* incident in early 1968, Seoul again asked for clear reassurances that the president would act to defend South Korea regardless of Congress. The US embassy reported Seoul's concerns:

⁸⁸Ibid.

⁸⁹Gregory Tien Hung Nguyen and Jerrold L. Schecter, *The Palace File*, 1st ed. (Harper & Row New York, 1986).

⁹⁰United States. National Security Council. 10 January 1980. "Special Coordination Committee Meeting: Iran/Pakistan."

⁹¹Briefing information for 3/14-3/15/67 U.S. visit of Prime Minister Il Kwon Chung: U.S.-Korean Mutual Defense Treaty. Department Of State, 14 March 1967. U.S. Declassified Documents Online.

⁹²Ibid.

⁹³Ibid.

People doubt that US will actually commit its forces to defend them in case NK aggression continues and are especially concerned over language in Mutual Defense Treaty which says that each party will act in “accordance to its constitutional process.” What is needed, he said, is some flat statement in document to which USG is party which spells out fact that President Johnson can commit US forces without time-consuming Congressional debate and approval.⁹⁴

Such efforts by Seoul continued into the next American administration. A 1969 National Security Council background paper reported that “the ROKs have pressed us for years to drop the reference to constitutional processes and make the Treaty commitment more automatic.”⁹⁵

After the WPR’s passage in 1973, US allies in Asia became especially worried over the credibility of the American commitment. An April 18, 1975, telegram from the American embassy in Seoul reported that the “U.S. commitment to Korea is suspect. While [South Korea was] bolstered by administration statements, [the] focal point of concern is congressional attitudes and fear that in [a] conflict situation Congress ... may ... deny funds and use of US forces needed to defend Korea.” It reported that because of this Seoul had decided to “move rapidly as possible to self-reliance.”⁹⁶

After Saigon’s fall in 1975, American officials were especially concerned that international perceptions of a shackled president were affecting alliance reassurance. At a May 7 National Security Council staff meeting, Kissinger stated that a requirement of congressional authorization was the problem: “I wouldn’t bet my bottom dollar when Korea gets invaded, whether Congress will pass a war resolution or an evacuation resolution.”⁹⁷ A credible assurance the United States would act—and specifically that the president would act regardless of Congress—was a key factor. Ford himself knew that “rhetoric alone ... would not persuade anyone that America would stand firm. They would have to see *proof* of our resolve.”⁹⁸

An opportunity to demonstrate such resolve on the part of the president would present itself just days later when Cambodian forces captured the commercial ship *Mayaguez*. When the crisis arose on May 12, Ford specifically asked how military options might be “hamstrung” by the WPR.⁹⁹ The demonstrative use of force was not meant just to show that the United States would respond in general, but more specifically that the president would act unilaterally—even in the face of congressional opposition.

⁹⁴FRUS, 1964–1968, Volume XXIX, Part 1, Korea, Doc. 174.

⁹⁵United States National Security Council. *U.S. Commitments to the Republic of Korea* 1969.

⁹⁶FRUS, 1969–1976, Volume E–12, Documents on East and Southeast Asia, 1973–1976, Doc. 267.

⁹⁷Ibid.

⁹⁸Gerald R. Ford, *A Time to Heal: The Autobiography of Gerald R. Ford*, 1st ed (Harper & Row, 1979), 275. Emphasis added.

⁹⁹FRUS, 1969–1976, Volume X, Vietnam, January 1973–July 1975, Doc. 285.

Kissinger argued in a May 14 meeting, “the Koreans and other [allies] would like to look us over and to see how we react. Under certain circumstances, in fact, some domestic cost is to our advantage in demonstrating [our] seriousness.”¹⁰⁰ A recent history of the *Mayaguez* incident notes that “Kissinger and other US leaders wanted to signal that the United States was ready and fully determined to protect South Korea—regardless of public opinion and congressional restrictions.”¹⁰¹

This reasoning was, indeed, clearly on the president’s mind. In a May 15 meeting with the Shah of Iran—another US partner—Ford admitted, “We perhaps overreacted, to show the Koreans and others our resolve. ... There were legislative restrictions imposed in ... the War Powers Act, which some said meant the President couldn’t act. This showed we could and did and showed the world we weren’t hamstrung.” The Shah concurred, “It shows the world that when the U.S. decides to do something it can be decisive.”¹⁰²

Still, questions over the automaticity of the American commitment to Seoul remained. In an August 1975 meeting, a Korean representative argued that “we are concerned that in the event of major aggression by North Korea the United States would have to go through various time-consuming processes,” specifically citing Congress. “And while all this was going on, our capital ... would be endangered by a lightning war.”¹⁰³ Secretary of Defense James Schlesinger replied that this was a “theoretical and not a practical problem. There is no question in my mind as to what actions the President would authorize in the case of major aggression. *I do not believe he would refer the issue to Congress.* I believe the reaction would be immediate.”¹⁰⁴ He stated emphatically that “in the event of major aggression across the DMZ [demilitarized zone] our reaction would be covered by the inherent powers of the U.S. President in light of the presence in the area of U.S. forces.”¹⁰⁵ In other words, a reassurance value of US troops on the DMZ was that their presence gave the president a strong constitutional rationale for using force without waiting for congressional authorization.

An analysis of the meeting a month later concluded that “there is no doubt Secretary Schlesinger’s trip was highly successful in manifesting our

¹⁰⁰*Ibid.*, Doc. 295.

¹⁰¹Christopher Jon Lamb, *The Mayaguez Crisis, Mission Command, and Civil-Military Relations*, First edition, with United States (Joint History Office, Office of the Chairman of the Joint Chiefs of Staff, 2018), 136.

¹⁰²*FRUS*, 1969–1976, Volume XXVII, Iran; Iraq, 1973–1976, Doc. 125.

¹⁰³*Ibid.*

¹⁰⁴Emphasis added. Thomas J. Barnes memo to General Scowcroft regarding Secretary Schlesinger’s discussion in Seoul. National Security Council, 29 September 1975. U.S. Declassified Documents Online.

¹⁰⁵Summary of a meeting between U.S. and South Korean defense officials to reevaluate the U.S. military role in South Korea. Department of Defense, 26 August 1975. U.S. Declassified Documents Online.

commitment to our South Korea allies.”¹⁰⁶ The demonstration of an unconstrained president in the *Mayaguez* incident and promises from the administration that the president would and could act unilaterally despite procedural conditions in the treaty went a long way in reassuring South Korea after the 1973 War Powers Resolution. Notably, the presence of American forces helped convince Seoul that the president would be able to act unilaterally.

The Philippines

The Philippines similarly sought assurances of the president’s unilateral action in the post-WPR period. As far back as the drafting of the Southeast Asia Treaty Organization (SEATO) treaty, Manila had (unsuccessfully) attempted to have the “constitutional processes” language stricken from the pact. It was more successful in acquiring verbal assurances of automatic and immediate defensive intervention from the White House.¹⁰⁷ In 1958, for example, Eisenhower issued a joint statement with the Philippine leader stating that “any armed attack against the Philippines would involve an attack against United States forces stationed there ... and would instantly be repelled.”¹⁰⁸ Not only would the US troop presence serve as a tripwire in the conventional sense, but an attack on them would remove any constitutional doubt about the president’s authority to intervene militarily.

The passage of the War Powers Resolution in 1973, however, undermined the credibility of the American commitment. An August 1973 State Department cable noted that the Philippines sought a renewed, automatic commitment but “realized it would be most inopportune to raise this in the U.S. Senate in the middle of the war powers debate.”¹⁰⁹ When the fall of Saigon was imminent in April 1975, Manila again raised the issue. The American Embassy reported back to Washington that the Philippines was reassessing its security arrangements with the United States because Manila was “disturbed by emerging view that commitments made by American presidents are nothing more than statements of intent that do not bind ... the Congress.”¹¹⁰ Manila simultaneously expressed that it would have to rely on its own actions for its security.¹¹¹

¹⁰⁶FRUS, 1969–1976, Volume E–12, Documents on East and Southeast Asia, 1973–1976, Doc. 273.

¹⁰⁷FRUS, 1952–1954, East Asia and the Pacific, Volume XII, Part 2, Doc. 375.

¹⁰⁸Dwight D. Eisenhower, Joint Statement following Discussions with the President of the Philippines. Online by Gerhard Peters and John T. Woolley, The American Presidency Project.

¹⁰⁹Embassy Manila to Department of State, Telegram 9787, 27 August 1973, 1973MANILA09787, Central Foreign Policy Files, 1973-79/Electronic Telegrams, RG 59: General Records of the Department of State, U.S. National Archives (accessed October 6, 2023).

¹¹⁰FRUS, 1969–1976, Volume E–12, Documents on East and Southeast Asia, 1973–1976, Doc. 334.

¹¹¹Ibid.

The US embassy predicted that Manila would demand either an “iron-clad commitment” to go to the “automatic defense of Philippines” or else it would kick the United States out of the archipelago or charge them heavily for its basing there.¹¹² In an April 16, 1975, speech, President Marcos stated, “Literal interpretation of [the] treaty provides no guarantee for the Philippines. The U.S. proposes to react only to attacks on U.S. bases ... responses to treaty obligations by any U.S. government would have to be approved by Congress.”¹¹³

Manila clearly viewed American troops as a tripwire that would activate the president’s unilateral power to respond to attacks on US forces. An August 2 1976 cable reported that Manila believed that “U.S. will come to defense of Philippines only [repeat] only if U.S. forces stationed here are attacked.” This was not just a political or strategic issue, but a legal one. The cable reported that this belief had come from the testimony of executive branch witnesses during hearings on the National Commitments Resolution in 1969. From this, leaders in the Philippines believed that “U.S. forces would react ‘automatically’ and ‘instantaneously’” only in the case of an attack on U.S. forces. Otherwise, they believed the “executive would observe ‘constitutional processes’ and have to ask for [congressional authorization] before U.S. troops could be committed.”¹¹⁴

In August, President Gerald Ford sent Deputy Secretary of State Charles Robinson to negotiate a new basing agreement. When asked by Manila what the American response would be if the Philippines were subject to armed attack, Robinson was unprepared and simply asserted the United States would follow its “constitutional processes.”¹¹⁵ Marcos was so unsatisfied with the ambiguous response that he “presented the U.S. with a formal Aide Memoire asking Washington for an explicit statement of American obligations under the [treaty],” and refused to allow further negotiations on the basing issue until the issue was resolved.¹¹⁶ Manila also pressed US representatives to clarify that the WPR contained no binding limitation on the president’s power to defend allies.¹¹⁷ In October, then-Secretary of State Henry Kissinger attempted to reassure the Philippine foreign minister that “with regard to the reference in the treaty to

¹¹²Ibid.

¹¹³Ferdinand Marcos, “A Matter of Survival,” speech before the University of the Philippines Law Alumni Association, 16 April 1975.

¹¹⁴Embassy Manila to Embassy Canberra, Telegram 11355, 2 August 1976, 1976MANILA11355, Central Foreign Policy Files, 1973- 79/Electronic Telegrams, RG 59.

¹¹⁵Gregory H. Winger, “Reassurance and Revival the U.S.–Philippine Alliance in the Wake of the Vietnam War,” *The International History Review* 44, no. 2 (2022): 393–417, <https://doi.org/10.1080/07075332.2021.1927799>.

¹¹⁶Winger, “Reassurance,” 401.

¹¹⁷State Department to Embassy Manila, Telegram 272078, 4 August 1976, 1976STATE272078, Central Foreign Policy Files, 1973- 79/Electronic Telegrams, RG 59.

constitutional process ... he could not imagine having any problem obtaining congressional support for defense of the Philippines, in view of the existence of the treaty and our bases there.”¹¹⁸

By November, the Ford administration realized that it needed to give stronger assurances than simply asserting that Congress would probably authorize the use of force in the Philippines’ defense. Kissinger this time reassured Manila that “the powers of the president under our constitution as chief executive and commander-in-chief are extensive and remain unimpaired by the treaty, as well as by legislation such as the recent War Powers Resolution.”¹¹⁹ The administration assessed that it had to restate pledges made by “Secretary Dulles and President Eisenhower and reiterated by President Johnson to the effect that an attack on the Philippines would be instantly repelled by the United States.” In doing so, American diplomats told the Philippine government directly, “We believe this is not inconsistent with the War Powers Act.”¹²⁰

Ford, however, would lose his bid for reelection the next month, and the outgoing administration left the issue for the incoming Carter Administration, which realized, “Marcos does ... appear concerned that passage of the War Powers Act has eroded our commitment. It was agreed that at some point in the negotiation we will need to assure him that our existing commitment still stands.”¹²¹ By September 1977, Marcos had developed a position that the United States would have to either make a deeper commitment to defend Manila or arm it.¹²² The Carter Administration attempted to reassure Manila that the president actually did have requisite unilateral powers to defend the Philippines: “Secretary Vance emphasized that the War Powers Resolution does not preclude the President from acting and taking any steps he sees necessary.”¹²³ An exchange of letters in early January 1979 pledged: “The reference in the treaty to ‘constitutional processes’ serves to make clear that the treaty could not, and was not intended to, alter those processes for either party. In the case of the

¹¹⁸FRUS, 1969–1976, Volume E–12, Documents on East and Southeast Asia, 1973–1976, Doc. 354.

¹¹⁹State Department to CINCPAC, Telegram 268153, 9 November 1976, 1976STATE268153, Central Foreign Policy Files, 1973–79/Electronic Telegrams, RG 59.

¹²⁰State Department to Embassy Manila, Telegram 287342, 23 November 1976, 1976STATE287342, Central Foreign Policy Files, 1973–79/Electronic Telegrams, RG 59.

¹²¹Ibid.

¹²²Newsom (Manila) to State, No. 15267, “Holbrooke-Marcos Discussion and assessment and guideline,” 26 September 1977: CFPF, NARA. “[President] Marcos...stressed theme that under the War Powers Act, the value of American treaty commitment was either sharply reduced or eliminated. I said that this was simply not the case, and that the War Powers Act did not affect the validity of the treaty.” FRUS, 1977–1980, Volume XXII, Southeast Asia and the Pacific, Doc. 300.

¹²³Mrs. Marcos replied defensively, “this was what had transpired in the past and some quarters held the President impotent...She...raised several other questions about the Mutual Defense Treaty (MDT) and the War Powers Resolution...The Secretary reassured her on both the MDT and the War Powers questions.” Ibid., Doc. 304.

United States, the powers of the president under our Constitution as chief executive and commander-in-chief are extensive and remain unimpaired.”¹²⁴

In the end, Manila secured both stronger assertions of executive power and significant aid concessions from the United States. Assuring the protégé of an unconstrained presidency again proved to be a key form of reassurance in the alliance relationship. Additionally, as was the case in South Korea, Manila’s decision-makers closely tied the presence of American troops with the perceived ability of the president to act unilaterally.

Thailand

The United States first became formally committed to Thailand’s defense in 1955 via SEATO. Thailand had joined the Philippines in seeking to remove the “constitutional processes” clause in that treaty when originally negotiating it with the Americans, but the Southeast Asian nations were unable to secure such a concession.¹²⁵ Almost immediately, Thai policy-makers began having doubts about the credibility of the alliance due to sentiment evident among US congressional leaders.¹²⁶ In 1964, Thai Foreign Minister Thanat even expressly lamented the “constitutional processes” language of the treaty in a *Foreign Affairs* article.¹²⁷

In 1966, as the Vietnam War escalated and as Congress became more skeptical of the American role in Southeast Asia, Thailand again began having doubts about the credibility of US security commitments. In hearings on US commitments in the region, the relationship with Thailand came under scrutiny from congressional leaders.¹²⁸ Senator Fulbright, Chairman of the Senate Foreign Relations Committee, publicly stated that he believed the United States should reconsider its relationship with Thailand. In response, Bangkok sought a firmer security guarantee from the administration.¹²⁹ Like other allies, the Thai government wanted greater automaticity, and they wanted it written down. Thanat “inquired whether it was so difficult to put it in words ‘in black and white.’” Secretary of State Rusk knew, however, that such an effort would never win Senate support, and if anything, the process might undermine the unilateral

¹²⁴Emphasis added. State Department to Embassy Manila, Telegram 4453, 6 January 1979, 1979STATE004453, Central Foreign Policy Files, 1973- 79/Electronic Telegrams, RG 59.

¹²⁵“For the Thais, the central issue in the Treaty’s wording was the question of automaticity,” R. Sean Randolph, *The United States and Thailand: Alliance Dynamics, 1950-1985*. Research Papers and Policy Studies 12. (Berkeley: Institute of East Asian Studies, University of California, 1986), 29.

¹²⁶Arne Kislenko, “Bamboo in the Wind, United States Foreign Policy and Thailand during the Kennedy and Johnson Administrations, 1961–1969” (University of Toronto [Toronto, Ontario], 2000).

¹²⁷Khoman Thanat, “Which Road for Southeast Asia?,” *Foreign Affairs*, no. July 1964 (July 1964).

¹²⁸Kislenko, “Bamboo.”

¹²⁹FRUS, 1964–1968, Volume XXVII, Mainland Southeast Asia; Regional Affairs, Doc. 323.

assurances given by the executive. In response to Bangkok's appeals for stronger and explicit guarantees, Rusk said "that he did not know of anything he could say that he had not already said in the light of our constitutional system."¹³⁰

By early 1970, Thanat admitted to Secretary of State William Rogers that "they were worried mainly about U.S. congressional attitudes which, they fear, might limit the Administration's ability to fulfill U.S. commitments." Rogers "assured him that congressional actions and attitudes would have no effect on U.S. treaty commitments."¹³¹ It was clear the "constitutional processes" clause of the treaty drove this fear: Rogers recalled "that the SEATO Treaty contains a provision that in taking action the signatories will follow their 'constitutional processes,' to which Thanat commented bitterly, 'Yes, an escape clause.'" Thanat specifically noted that "the Thai do not doubt the Administration's words in offering such reassurances but that the words of Congress raise doubts."¹³²

The issue of draft war powers resolutions—circulating on the Hill since the summer of 1970—was also clearly on the minds of Thai policymakers. In 1971, when the Under Secretary of State attempted to blame anti-war groups for constraints on American military and economic support to Thailand, "Thanat commented that the problem is deeper than just the anti-war groups, it is also a struggle between the Executive and Legislative branches of the US Government," which included a "desire of Congress to curb the war powers of the President."¹³³

Without trust in the American security commitment, Thai foreign policy turned toward realignment. Notably, the Thais seemingly would have trusted the agreement more had they perceived the president as having more unilateral power. Thanat and others frequently asked for a new treaty or at least written guarantees that the executive branch would automatically meet the American commitment; however, the responses consistently disappointed them. By 1975—even before Saigon's fall—Bangkok was beginning to move in another direction. A January State Department cable complained of "Thanat's oft-repeated argument that U.S. Forces should be withdrawn from Thailand since they impede better relations with Hanoi and congressional restrictions make it unlikely that they will be employed."¹³⁴ By March, Thailand considered ejecting US forces still based on its territory. The US government tried to argue (like in the Korea and Philippines

¹³⁰Ibid.

¹³¹*FRUS*, 1969–1976, Volume XX, Southeast Asia, 1969–1972, Doc. 48.

¹³²Ibid.

¹³³Ibid., Doc. 121.

¹³⁴State Department to CINCPAC Telegram 15015, January 22, 1975, 1975STATE015015, Central Foreign Policy Files, 1973–79/Electronic Telegrams, RG 59.

cases) that the president would be less legally-constrained if US forces were in the country. The Thais, however, “did not believe, given current attitudes within the U.S. and in the U.S. Congress, that we would use these forces in Thailand’s defense.” Notably, the White House faced a major barrier vis-à-vis Thailand that it did not face with any of its other allies: the Case-Church Amendment, passed in the summer of 1973, affirmatively prohibited the use of American military force in mainland Southeast Asia absent formal approval from Congress. Thus, while all allies had to worry about the ambiguity of the “constitutional processes” term in their defense treaties and the effect of the War Powers Resolution, Bangkok was unique among American allies in facing the additional barrier of a clear prohibition on the use of force via the Case-Church Amendment.

In June, a State Department cable noted that Thai “knowledge of congressional strictures on use of [force]” was leading them to doubt the credibility of the alliance. The cable explained, “the Thai think they are no longer under our protective umbrella, notwithstanding the repeated high level assurances they have received ... regarding our determination to honor our commitments” because of the “increased role of the U.S. Congress.”¹³⁵ In a 7 September article published in the *Bangkok Post*, the Secretary General of the Thai National Security Council similarly noted that “high-ranking American officials have assured us that they would carry out their commitment to us” but that assurance was qualified by the “constitutional process” clause of the treaty. He specifically pondered whether “it be possible for the Americans to come to our aid immediately without first getting the approval of Congress? ... If it is up to Congress, then it is difficult for us [to be confident in the American commitment].”¹³⁶

Thanat succinctly summarized Thai thinking regarding the credibility of the American commitment: “What are promises worth if we are unsure of the position of the [American] legislative branch? If the U.S. Congress was to pass a resolution tomorrow that if Thailand were attacked the U.S. would join Thailand’s defense, I would be the first to advocate that American forces remain. At present, however, they are a liability.”¹³⁷ Thailand accordingly realigned its foreign policy, working much more closely with Communist China and opening relations with the Soviet Union.

¹³⁵Embassy Bangkok to State Department, Telegram 12351, 25 June 1975, 1975BANGKO12351, Central Foreign Policy Files, 1973- 79/Electronic Telegrams, RG 59.

¹³⁶Embassy Bangkok to State Department, Telegram 18841, 8 September 1975, 1975BANGKO18841, Central Foreign Policy Files, 1973- 79/Electronic Telegrams, RG 59.

¹³⁷Karl D. Jackson, “Thai-U.S. Security Relations,” in *United States-Thailand Relations*, ed. Karl D. Jackson and Wiwat Mungkandi, Research Papers and Policy Studies 20 (Institute of East Asian Studies, University of California, 1986), 165.

Conclusion and Implications

The cases presented in the previous section exhibit consistent evidence that US allies are very attuned to US domestic war powers questions, are highly sensitive to the commitment gap manifest in the “constitutional processes” language in each alliance treaty, and seek to redress the resulting commitment gap (as summarized in [Table 3](#)). On the American side, we see that successive American administrations have felt this pressure from allies and undertaken actions intended to reassure them of an ability and willingness to act absent congressional approval, including demonstrative unilateral actions, broad statements of unilateral presidential power, and tripwire deployments that help bolster the president’s legal authority to respond militarily without formal congressional authorization.

The foregoing evidence suggests that a critical element in American reassurance of its allies is an image of an imperial presidency ready, willing, and able to use force unilaterally. While Congress has recently sought to impose checks on the president’s power to withdraw from alliance commitments, when it comes to the most high-profile presidential power of all—the power to make war—allies prefer weak legal checks on presidential action.¹³⁸

Contemporary Applicability

One might wonder whether lessons derived from an empirical analysis of the Cold War still broadly hold today. In particular, we consider two factors that might undermine the current applicability of lessons from that period: first, the decline of Senate-ratified treaties over time, and second, situations in which Congress appears more supportive of allies than the president. We do not believe that either of these factors substantially diminishes the applicability of our argument to contemporary or future alliance reassurance.

First, although there has been a sharp decline in Senate-ratified treaties over time—and the use of executive agreements has grown—the fact remains that all formal US defense pacts in the world today exist under Senate-ratified treaties that lack expiration dates (NATO, as well as treaties with Japan, South Korea, Australia, and the Philippines, for example). Whether or not future international agreements are made as Senate-ratified treaties, these existing pacts in Europe and Asia will likely remain core American commitments well into the future. Furthermore, it is not clear that there has been a decline in treaties regarding the specific question of defense pacts. The Senate jealously guards its prerogatives in this area,

¹³⁸Anderson, “What Congress.”

and all new NATO accessions, including those in recent years, have gone through formal Senate approval. Moreover, while many have bemoaned growing polarization in Congress, bipartisanship in foreign policy remains more common than generally appreciated, and alliances have been one particular area in which bipartisan support seemingly remains.¹³⁹ When President Biden pursued a possible security guarantee for Saudi Arabia, for instance, the assumption was that the Senate would need to formally approve it. Moreover, it seems intuitive that even partners that lack a formal treaty commitment with the United States (e.g., Israel or Taiwan) would similarly prefer a president be legally unconstrained from coming to their aid instantly and unilaterally. Indeed, because future protégés may already have reason to doubt the credibility of an American commitment absent the costly-signaling of Senate ratification, they may be even more sensitive to legal checks on presidential action.¹⁴⁰

Second, one might reasonably point out that the primary focus of our case evidence is on periods in which the executive branch was generally more supportive of defending allies than Congress, whereas the current president (Trump) has publicly raised questions of his own commitment to allies while Congress has in some recent years been the branch trying harder to reassure allies. This role-reversal has been rare in the eight decades since WWII, although not without precedent. The Carter administration, for instance, faced substantial opposition in Congress toward its plans to withdraw troops from South Korea and to terminate the mutual defense treaty with Taiwan.

Even in the current uncommon situation, though, we would expect our argument to generally hold, because allies do not want even an alliance-skeptic president facing legal hurdles to intervene on their behalf. Or, in other words, whereas allies may dislike the current president's imperial tendencies in areas like international trade or immigration, they will likely still prefer that the president retain broad unilateral powers specifically in the area of military force. This follows from our previously presented theory. Indeed, allies' heightened worries about whether the president will follow through on defense commitments in the event of crises probably makes them especially sensitive to adding in Congress as an *additional*, legally-required veto player to the initiation of US action on their behalf. There is some historical evidence from the Carter years to support this proposition. It was during that period that many allies were pressing the White House to assert its willingness to act unilaterally in the war initiation context (e.g., the Philippines, as previously discussed).

¹³⁹Jordan Tama, *Bipartisanship and US Foreign Policy: Cooperation in a Polarized Age* (Oxford University Press, 2023); Friedman, "Myth."

¹⁴⁰Martin, "President," 440–65.

While Seoul was fighting US troop withdrawal plans proposed by the Carter Administration in early 1977, it was at the exact same time requesting of the White House that “the War Powers Act or the Mutual Security Treaty be amended to authorize automatic U.S. involvement in case of a conflict.”¹⁴¹ Even when facing a Congress more supportive of the alliance than the executive, allies are wary of any requirement for US congressional approval of American intervention.

Many legislators have recently recognized this logic. The vast majority of Senators who supported a measure prohibiting NATO-withdrawal without congressional approval also opposed a measure that would have implied congressional authorization was needed before a president could act to defend NATO allies.¹⁴² In voting down this latter proposal, for example, Senator Mitt Romney argued that it would make the United States “appear to be going wobbly” on NATO, and the chairman of the Senate Foreign Relations Committee characterized such talk as akin to “gutting the core commitment” of the defense pact.¹⁴³ In other words, these lawmakers recognized that perceptions of a presidency able to act unilaterally remain an important element for alliance reassurance even in situations in which lawmakers are more supportive of allies than the executive.

Implications

Our argument—that in their own security policy-making, allies pay attention to the allocation of constitutional war powers within the US government—has several significant academic and policy-relevant implications. First, a finding that allies effectively demand weak legal checks on the American president’s power to make war contributes to understanding of the post-WWII emergence of an imperial presidency in the first place. It is well-recognized that presidential claims to expansive war powers became especially prominent after 1945. Existing explanations of this phenomenon tend to emphasize Cold War stakes and geopolitics, the advent of nuclear weapons, and the establishment of a large post-WWII standing army. Our theory suggests that the proliferation of American alliance obligations starting in the late 1940s adds another, complementary explanation for this phenomenon.

Second, our theory helps to refine the explanatory logic of tripwires in alliance reassurance. Several recent works have called into doubt the

¹⁴¹Embassy Seoul to State Department, Telegram 06011, 19 July 1977, 1977SEOUL06011, Central Foreign Policy Files, 1973- 79/Electronic Telegrams, RG 59.

¹⁴²Anderson, “What Congress”; Mychael Schnell, “Senate Defeats Rand Paul Amendment to NATO Resolution Clarifying War Powers,” *The Hill*, 3 August 2022.

¹⁴³U.S. Congress. 2022. Congressional Record: Proceedings and Debates of the 117th Congress, Second Session. Vol. 168, no. 130 (3 August).

conventional rationale of tripwires, namely that tripwires are hands-tying mechanisms that create “strong domestic pressure for further military intervention by the country whose troops have come under attack.”¹⁴⁴ Our explanation provides an alternative logic: allied leaders have thought that the presence of troops made a US response more likely because it strengthened the president’s constitutional hand to act unilaterally.¹⁴⁵ Presidential administrations directly fed this perception in foreign capitals. The presence of American forces did not merely increase congressional and popular support for war—as the logic these studies follow assumed—but also made such support less relevant. Although recent scholarship has neglected this point, legal scholars noted it during the crafting of war powers legislation in the 1970s, and it was frequently seen in the communications between allies and the executive branch in the cases mentioned in the previous sections.¹⁴⁶

Third, our theory has direct implications for contemporary debates over war powers reform. There have been many renewed calls to rein in an imperial presidency via legislation with more bite than the WPR, which has been continually watered down since 1973. Recent proposals to revise the legal architecture of war powers often emphasize, for example, amending the WPR to insert broader and clearer definitions of what military operations require affirmative congressional votes and/or to add automatic funding cutoffs without such votes. Such calls will likely increase in the near term, as many political leaders and commentators worry over the perceived recklessness of the current president. Our findings, however, suggest that allies would likely oppose stronger legislative checks on presidential war-making—even if they might welcome them in other areas, like tariffs—especially in the long term. Our findings show that much of the impetus to weaken the WPR in the first place was precisely to reassure allies, and that pattern may recur if Congress tries again to legislatively rein in presidential power to use military force. Scholars have spent insufficient political and intellectual energy on how legal reform proposals might inadvertently undermine the credibility of US alliance commitments. We expect that more dedicated attention to this consideration will reveal the impracticality of many otherwise popular proposals from those who also support strong alliances.

¹⁴⁴Musgrave and Ward, “Tripwire Effect,” 1. See, also, Blankenship and Lin-Greenberg, “Trivial Tripwires”; Reiter and Poast, “Truth.”

¹⁴⁵Much recent work has assumed that “tripwire deterrence depends on the logic of hands-tying.” Musgrave and Ward, “Tripwire Effect,” 4. This is not necessarily true; however, such deployments can serve as incentive-rearranging mechanism that affects the other side of the credibility constraint: lowering the cost of following through on a threat rather than increasing the cost of backing down. Hulme, “War and Responsibility.”

¹⁴⁶See, e.g., Alexander M. Bickel, testimony, *War Powers Legislation*, Committee on Foreign Relations, United States Senate, 92nd Congress, 1st Session, 26 July 1971, Washington, D.C., 572.

More broadly, our findings imply that ideal-type grand strategies that emphasize the importance of strong alliance commitments—for example, deep engagement or liberal internationalism—are in underappreciated ways in tension with a legally restrained executive.¹⁴⁷ The opening epigraph demonstrated this recognition by a key architect of postwar grand strategy: namely, that the United States could not sustain alliances absent foreign perceptions of an American president willing and able to act unilaterally.

In other words, our theory suggests that for the postwar American grand strategy reliant on strong alliances, an image of an imperial presidency has been a key feature, not a bug. While existing literature argues that democratic institutional constraints increase the credibility of alliance commitments, in the war powers context specifically, a belief in an *unconstrained* presidency is crucial to American credibility.¹⁴⁸ Reassuring democratic allies abroad, ironically, greatly depends on a belief that the American presidency is willing and able to push the bounds of democratic constraint at home.

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¹⁴⁷For deep engagement, see Stephen G. Brooks and William C. Wohlforth, *America Abroad: The United States' Global Role in the 21st Century* (Oxford University Press, 2016). See also see Beckley, "Myth." For liberal internationalism, see John G. Ikenberry, *Liberal Leviathan: The Origins, Crises, and Transformation of the American System* (Princeton University Press, 2011). A grand strategy less focused on alliances—for example, restraint—would seemingly put less "imperial" pressure on the presidency. Eugene Gholz et al., "Come Home, America: The Strategy of Restraint in the Face of Temptation," *International Security* 21, no. 4 (1997): 5–48; Barry R Posen, *Restraint a New Foundation for U.S. Grand Strategy* (Cornell University Press, 2015).

¹⁴⁸Chiba et al., "Careful Commitments"; Leeds, Brett Ashley. "Alliance Reliability in Times of War: Explaining State Decisions to Violate Treaties." *International Organization* 57, no. 4 (2003): 801–27.